



BEFORE

When the war began few whites, in the North as much as in the South, thought it appropriate or even safe to permit Black Americans to enlist as soldiers.

EMANCIPATION PROCLAMATION

The formation of **Black regiments** was sanctioned by the [Emancipation Proclamation](#). For Lincoln, enlisting Black soldiers was a **practical measure** to assist in preserving the Union, but he feared repercussions from the border states, where the idea of **arming Black men was repugnant** to most white citizens.

STATE-RAISED BLACK REGIMENTS

After the **Confiscation Acts** passed by the U.S. Congress in 1862, Massachusetts, Connecticut, and the military governments of occupied Louisiana and South Carolina began forming Black regiments. Response to recruitment drives was mixed—in the states of New England **free Blacks had been turned away** when they tried to join up in 1861 and now some thought twice about enlisting. In the occupied South, **enslaved people who had been freed flocked to join up**, excited by the prospects of steady pay and striking a **blow against their enslavers**.

In addition to the hazards of battle and other dangers of military life, Black soldiers faced other difficulties. Confederates reacted strongly to the prospect of Black Union soldiers. President Jefferson Davis issued a proclamation in December 1862 that directed all Confederate military officers in the field to turn over captured Black Union soldiers and their white officers to state—not Confederate—authorities. In this capacity any prisoners could be indicted for insurrection or inciting insurrection and sentenced to death. On May 1, 1863 the Confederate Congress went one step further and passed a joint resolution authorizing Davis to allow such captured white officers to be put to death and to sell Black enlisted men back into slavery.

Lincoln's response to this was stern: for every captured Federal officer put to death, an imprisoned Confederate officer would be summarily executed in the North. There were no recorded cases of white officers being executed by Rebel authorities but there is strong evidence of seized Black soldiers being returned to slavery. Moreover, Southern soldiers finding themselves confronted by Black Union soldiers often discarded any semblance of obeying the rules of war. Barbarities were not uncommon; the most notorious were those committed at Fort Pillow, a Union garrison on the Tennessee